

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KEN ERICSON,

Petitioner

VS.

ARLENE ERICSON,

Respondent

) Case Number: FDI-21-795007

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Ken Ericson and Respondent Arlene Ericson married on 2/1/1997. The parties agree they separated in 2020, for a marriage of 23 years. The parties have one minor child, Kristina (DOB: 2/25/2010, age 16). Father is represented by attorney Anne Fokstuen (Notice of Limited Scope Representation filed 9/5/2023). Mother is represented by attorney Crisostomo Ibarra (Substitution of Attorney filed 2/11/2026).
- 2) At the 11/21/2023 hearing (per the Findings and Order After Hearing filed 12/6/2023), the Honorable Judge Tong ordered Father to pay Mother guideline child support of \$1,357 per month and temporary non-guideline spousal support of \$500 per month, for total payments of \$1,857 per month effective 11/15/2023. The parties were also ordered to share 66 (Father) / 34 (Mother) all reasonable uninsured healthcare costs for the child. Judge Tong ordered Mother to seek work. Judge Tong further found that Father cannot afford to make any contribution to Mother's attorney's fees and denied Mother's request for need-based attorney's fees.

- 1 3) At the 2/27/2025 hearing (per the Findings and Order After Hearing filed 7/7/2025), the
2 Honorable Judge Costin modified the child support award effective 6/1/2025 to include an
3 imputation of part-time minimum wage income to Mother (of \$1,493.60 per month) and to
4 increase the timeshare percentage for Father to 50%. The Court therefore ordered Father to pay
5 Mother \$840 per month for guideline child support and \$500 per month for temporary non-
6 guideline spousal support, for total support owed of \$1,340 per month. Judge Costin also awarded
7 to Mother \$10,000 per month in need-based attorney's fees and costs, payable at a rate of \$1,000
8 per month. Judge Costin noted that it was making this award to Mother, "an unrepresented party,"
9 to "enable her to retain an attorney." Judge Costin further noted, "The Court reserves jurisdiction
10 to issue Mother additional attorney fees once Counsel is retained."
- 11 4) At the 12/11/2025 hearing, the Honorable Judge Chan modified child support effective
12 10/25/2025 (the date Father's timeshare decreased to 1%) to \$1,463 per month. Judge Chan
13 maintained the \$500 per month spousal support order. Therefore, Father was ordered to pay
14 \$1,963 per month in total support to Mother effective 10/25/2025.
- 15 5) At the 2/19/2026 hearing, the Honorable Judge Mori ordered Kristina to remain at her current
16 school at this time and ordered Mother to continue to drive Kristina to and from school on
17 Tuesdays, Wednesdays, and Thursdays, unless the parties agree in writing to a different
18 transportation schedule.
- 19 6) Now on for hearing is Mother's Request for Order filed 5/19/2026 seeking (a) guideline spousal
20 support and (b) \$36,000 in need-based attorney's fees. Mother states, "The \$10,000 was
21 exhausted, with another \$10,820 balance. Need \$10,000 to engage forensic CPA."
- 22 7) On 5/11/2026, Mother filed an Income and Expense Declaration. Mother states that she is 57
23 years old and has a college degree in finance / economics. Mother states she currently works 16
24 hours per week as an office assistant for JNC Glass Works and earns on average \$900 - \$100 per
25 month. Mother also states that she works as a substitute teacher once or twice a month and is paid
26 \$115 - \$270 per day. Mother states that last month she earned \$1,500 and \$200 in overtime pay.
27 Mother states that on average Father pays her \$250 per month for mileage to drive Kristina to and
28 from school in Walnut Creek. Mother states that her monthly expenses total \$3,840 per month.
29 She has no housing expenses because the home she lives in is fully paid off. Mother reports

1 having \$400 in cash savings and \$1,000,000 in real property holdings with Father. Mother reports
2 owing \$950 to the IRS, \$15,000 to her attorney, and \$5,000 to Macy's for household expenses
3 and clothing. Mother states that she has paid her attorney \$10,000 to date and still owes \$10,820.

4 8) On 7/9/2026, Father filed a Responsive Declaration asking the Court to deny Mother's requests.
5 Father states that he is currently unable to pay his own legal fees and owes over \$15,000. Father
6 states that Mother's disability or medical claims are unverified.

7 9) On 7/13/2026, Father filed an Amended Income and Expense Declaration. Father states that he is
8 65 years old and has a college degree. Father reports the following income: \$1,667 per month in
9 salary / wages, \$2,468 per month in Social Security, \$1,397 per month in "social security
10 auxiliary benefits for daughter," and \$5,321 per month through his book-keeping business. Father
11 reports that his monthly expenses total \$11,805, which includes \$2,500 per month for rent and
12 \$5,435 per month for debt payments. Father reports having \$4,000 in cash savings and \$775,000
13 in real property. Father reports owing \$19,000 for a car loan, \$15,000 for legal fees, \$10,000 for a
14 loan from his Mother, and \$27,200 in taxes. Father states he has paid his attorney \$35,000 to date
15 using "monthly earnings," and still owes his attorney \$15,000.

16 10) On 7/16/2026, Mother filed a Reply Declaration. Mother states that she suffered a work accident
17 at her part-time job which caused a concussion. Mother states she was placed off work from
18 5/15/2026 – 7/3/2026 and from 7/15/2026 – 8/15/2026. Mother requests that the Court transfer
19 their daughter from her school in Walnut Creek to a school in San Francisco which would allow
20 her to work 8 AM to 5 PM, 5 days per week instead of waiting in parking lots from 9 AM until 2
21 PM in Walnut Creek. Mother states that because Kristina's school in Walnut Creek, Mother can
22 only work 2 days per week and cannot qualify for a HELOC on her home. Mother states SFUSD
23 has already placed Kristina in a school in San Francisco pending court approval and the school
24 year starts mid-August. Mother also states that Father is underreporting his income from his
25 business.

26 11) There is a Mandatory Settlement Conference currently scheduled for 7/31/2026.

27 **B. Findings and Order**

28 1) The Court notes that attorney Anne Fokstuen has exceeded the scope of the Notice of Limited
29 Scope Representation filed 9/5/2023 (which states that she will represent Father at the 9/12/2023

1 and 9/14/2023 hearings and for any continuance of those hearings, and she will represent Father
2 for the establishment of child and spousal support). If Ms. Fokstuen desires to continue
3 representing Father in this proceeding, she must file an updated Notice of Limited Scope
4 Representation or a Substitution of Attorney.

- 5 2) The Court notes that Mother's Request for Order filed 5/19/2026 did not expressly seek a
6 modification of the current spousal support order. Rather, it sought to establish a spousal support
7 order (even though Father has been under an order to pay Mother non-guideline temporary
8 spousal support since 11/15/2023). Even in her Reply Declaration filed 7/16/2026, wherein
9 Mother details that she has been placed off work for 49 days by her doctor, Mother does not
10 specify what exactly she is requesting with respect to spousal support. The Court also notes that
11 Mother did not explain why she needs a forensic accountant appointed in this case, nor did her
12 attorney provide the information required under California Rules of Court, rule 5.427(b)(2) for
13 this Court to determine whether the fees incurred to date and estimated to be incurred are just,
14 necessary, and reasonable.

- 15 3) The hearing on Mother's 5/19/2026 Request for Order is hereby continued to **Tuesday,**
16 **10/13/2026 at 9:00 AM in Dept. 404.** If the parties are unable to reach a full agreement at the
17 Mandatory Settlement Conference currently set for 7/31/2026, the parties are ordered to do the
18 following:

- 19 a. At least 25 days before the next hearing date, Mother shall file and serve an updated
20 Income and Expense Declaration, a declaration detailing what exactly she is asking the
21 Court to order with respect to spousal support, and a proposed Statement of Support
22 Calculations. Mother shall attach to her declaration doctor's notes detailing the days she
23 has been placed off work. Mother's attorney shall file and serve a declaration containing
24 the information required under California Rules of Court, rule 5.427(b)(2), including a
25 summary of the hours spent on the case to date and the tasks performed, as well as
26 Mother's attorney's estimate of the number of hours of work and tasks that are needed to
27 bring this case to completion.
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1 b. At least 10 days before the next hearing date, Father shall file and serve an updated
2 Income and Expense Declaration, a declaration responding to any new declarations filed
3 by Mother, and a proposed Statement of Support Calculations.

4 4) Mother's request that the Court change Kristina's school is beyond the scope of her Request for
5 Order filed 5/19/2026 and her request is denied without prejudice to a new Request for Order.

6 5) The Court will prepare the Findings and Order After Hearing.
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